



DEFENSE COUNTERINTELLIGENCE AND SECURITY AGENCY
BUILDING 600 10TH STREET
FORT GEORGE G. MEADE, MD 20755-5615

PERSONNEL VETTING

March 24, 2026

MEMORANDUM FOR 5TH SECURITY FORCES SQUADRON
(ATTN: SECURITY MANAGEMENT OFFICE)

SUBJECT: Instructions for Handling Statement of Reasons
Re: A1C Emanuel D. Soto Guibas, 597-26-8281

References: (a) DoDM 5200.02, Procedures for the DoD Personnel Security Program (PSP)
April 3, 2017
(b) Security Executive Agent Directive 4, National Security Adjudicative
Guidelines, June 8, 2017

1. After careful review of available pertinent information, and in accordance with the references above, the Defense Counterintelligence and Security Agency (DCSA) Trust Decision (Adjudications) (TD[A]) has made a preliminary decision to deny or revoke the Subject's eligibility for access to classified information and/or assignment to duties that have been designated national security sensitive. The TD(A) assessment of the applicable security concerns for this preliminary decision is memorialized in the attached Statement of Reasons (SOR) addressed to the Subject.

2. The memorandum provides instructions for actions required by your organization related to the Subject named in the attached SOR. Denial or revocation of eligibility for access to classified information and/or assignment to duties that have been designated national security sensitive can have a severe impact on Subjects and their careers. The procedures required by the above references must be closely followed to ensure that all elements of security and fairness are met.

3. Your organization is responsible for determining whether to suspend access to classified information and/or assign the Subject to non-sensitive duties pending a final personnel security decision regarding the Subject's eligibility. Failure to do so could result in an increased level of security risk to your organization and/or national security.

4. Please ensure the following actions, as appropriate, are accomplished within the specified time frames:

a. Promptly deliver the attached Statement of Reasons package to the Subject.

b. Ensure that the Subject is aware that they may contact the TD(A) Call Center at commercial (667) 424-3850 or DSN 323-424-3850 for appropriate procedural information, and that the Subject understands that the TD(A) Call Center will not be able to provide advice, directions, or substantive assistance.

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c. Complete and forward the *Statement of Reasons Receipt and Statement of Intent* to TD(A) within ten (10) calendar days of the Subject's receipt of the SOR package. Ensure that the form is properly completed by Subject and by your organization. This form notifies TD(A) whether the Subject intends to respond to the SOR. Should the Subject refuse to complete the *Statement of Reasons Receipt and Statement of Intent*, the SMO will complete the form verifying the date the SOR package was delivered to the Subject and forward the completed form to TD(A) within ten (10) calendar days of Subject's refusal to sign. An additional witness is required to sign the form to verify the SOR package was delivered to the Subject.

d. Ensure the Subject understands that he/she may choose to obtain legal counsel, or other assistance, in preparing a response to this preliminary decision. He/she may obtain civilian counsel, at his or her own personal expense, or, if eligible, from the staff of the Judge Advocate General. Advise the Subject that if he/she desires assistance from legal counsel that he/she should make those arrangements immediately.

e. Ensure that the Subject understands the consequences of being found ineligible for access to classified information and/or assignment to duties that have been designated national security sensitive, and the serious effect such a decision could have on his/her career.

f. Take particular care to ensure that the Subject fully understands that the preliminary denial or revocation decision will become final based on the available information if:

- your organization notifies TD(A) via the *Statement of Reasons Receipt and Statement of Intent* that the Subject does not intend to respond to the SOR, or
- the Subject reports that he/she will respond to the SOR and TD(A) receives no response within the specified time period.

Ensure the Subject understands that in either of these instances, the preliminary decision will become a final determination on the merits of the available information.

g. If the Subject chooses to respond to the SOR, inform him/her they have thirty (30) calendar days from the date of their acknowledgment on Attachment 2, *Statement of Reasons Receipt and Statement of Intent*, of his/her memorandum, to submit the response in writing through the SMO. Explain procedures for requesting a time extension for responding to the SOR. An extension of up to thirty (30) calendar days may be granted by the employing organization following submission of a written request from the Subject. Additional extensions may only be granted by TD(A). Ensure the Subject understands that requests for extension of time to submit a written response beyond the established suspense date must be submitted in writing through the SMO prior to the most recent SOR response due date, and (after the initial extension of time) approved by TD(A). Exceptions to this policy may only be circumstances where the Subject's failure to respond to the SOR was due to factors beyond his or her control.

h. Assist the Subject in obtaining the applicable references and copies of pertinent investigative files. The SOR is based on information obtained from investigative agencies and/or

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STATEMENT OF REASONS (SOR)
FOR AIC EMANUEL D. SOTO GUIBAS, 597-26-8281

The information listed below was derived from the documents listed at the end of this attachment (Attachment 1, Statement of Reasons). Each item of disqualifying information falls under one or more of the security guidelines listed below.

GUIDELINE F: Financial Considerations

Available information shows issues of Financial Considerations on your part.

Failure to live within one's means, satisfy debts, and meet financial obligations may indicate poor self-control, lack of judgment, or unwillingness to abide by rules and regulations, all of which can raise questions about an individual's reliability, trustworthiness, and ability to protect classified or sensitive information. An individual who is financially overextended is at greater risk of having to engage in illegal or otherwise questionable acts to generate funds. Affluence that cannot be explained by known sources of income is also a security concern insofar as it may result from criminal activity, including espionage.

Per the Adjudicative Guidelines, conditions that could raise a security concern and may be disqualifying include:

Your Credit Bureau Report (CBR), obtained by the Defense Counterintelligence and Security Agency (DCSA) on September 18, 2024, revealed the following information:

You are indebted to TUCSON FCU for account # 15198202 placed for collection in the approximate amount of \$10,923.00.

You are indebted to WEBNA CARD on an account that has been charged off in the approximate amount of \$9,607.00.

You are indebted to TUCSON FCU for account # 15198201 placed for collection in the approximate amount of \$6,420.00.

You are indebted to JEFFERSON CAPITAL SYST for an account placed for collection by VERIZON WIRELESS in the approximate amount of \$2380.00. As of the date of this Statement of Reasons, the account remains delinquent.

You are indebted to FREEDOM ROAD FINANCIAL for account placed for collection in the approximate amount of \$1,112.00. As of the date of this Statement of Reasons, the account remains delinquent.

During your interview with a DCSA investigator on March 5, 2025, you discussed your delinquent accounts. You stated that your Tucson FCU Account # 15198202 was a defaulted loan for a Honda Civic that was repossessed. Account # 15198201 with Tucson FCU was also a defaulted loan. You stated the Jefferson Capital account was placed in collections after you fell behind on your phone bill. You indicated these three accounts were included in your debt consolidation plan that you started in September 2024. You claimed you were paying \$178 every two weeks with the plan to have it resolved in 2026. You stated your account with WFBNA Card

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was a credit card that was closed for failure to make timely payments. You stated that you have not taken any action to pay off this debt, but plan to pay after you complete your current debt consolidation plan. You stated you did not recognize the debt with Freedom Road Financial.

On March 6, 2025, you provided a DCSA investigator a faxed copy of a Debt Negotiation Agreement with National Debt Relief, which confirmed you enrolled \$20,413 of debt with \$179 bi-weekly payments to a dedicated savings account beginning on April 19, 2024. Your two accounts with Tucson FCU and Jefferson Capital (Verizon Wireless) were listed as enrolled. The agreement showed your enrollment with National Debt Relief but did not provide confirmation of any settlement agreements or payments to your creditors.

DCSA Adjudication and Vetting Services (AVS) sent you a Supplemental Information Request (SIR) on June 17, 2025. In response, you provided an undated Memorandum, Subject: SIR/CEIR Response. You stated you have made consistent monthly payments of \$358.00 toward the resolution of your debts. You provided an Account Activity Report from BetrLink LLC, Account #34054702. The Account Activity Report shows six payments to Jefferson Capital System in the amount of \$230 between June 28, 2024, and November 29, 2025. The activity report also shows that on March 21, 2025, you submitted a single \$50.00 payment to Tucson Federal Credit Union, but a specific account number was not available.

DCSA obtained another CBR on January 28, 2026, which revealed the following information:

You are indebted to TUCSON FCU for account # 15198202 placed for collection in the approximate amount of \$10,773.00. As of the date of this Statement of Reasons, the account remains delinquent.

You are indebted to WFBNA CARD on an account that has been charged off in the approximate amount of \$9,205.00. As of the date of this Statement of Reasons, the account remains delinquent.

You are indebted to TUCSON FCU for account # 15198201 placed for collection in the approximate amount of \$5,401.00. As of the date of this Statement of Reasons, the account remains delinquent.

In response to a September 29, 2025, DCSA SIR, you provided a statement, dated November 3, 2025, and reiterated that you have consistently made monthly payments of \$358.00 to National Debt Relief. You stated that you would provide a bank statement from Pyramid Federal Credit Union from April 2024 to present showing these payments. However, the bank statement was not included in the documentation. You also said that you received a settlement offer from Wells Fargo regarding the debt of \$9,607.00, which has been reduced to \$2,401.85, with the first payment of \$100.00 scheduled for October 25, 2025. You said the Settlement Agreement would be enclosed, but that was not included in the documentation provided.

While you stated you have entered a debt relief program and started making payments on your outstanding account with Wells Fargo, you have failed to provide current documentation showing continuation adherence to the debt relief program or settlement information for the Wells Fargo account.

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DEFENSE COUNTERINTELLIGENCE AND SECURITY AGENCY

**BUILDING 600 10TH STREET
FORT GEORGE G. MEADE, MD 20755-6616**

PERSONNEL VETTING

March 24, 2026

MEMORANDUM FOR AIC EMANUEL D. SOTO GUIBAS, 597-26-8281

THROUGH: 5TH SECURITY FORCES SQUADRON
(ATTN: SECURITY MANAGEMENT OFFICE)

SUBJECT: Intent to Deny Eligibility for Access to Classified Information and/or Assignment to Duties that have been Designated National Security Sensitive

References: (a) DoDM 5200.02, Procedures for the DoD Personnel Security Program (PSP), April 3, 2017
(b) Security Executive Agent Directive 4, National Security Adjudicative Guidelines, June 8, 2017

1. Per the above references, a preliminary decision has been made by the Defense Counterintelligence and Security Agency (DCSA) Trust Decision (Adjudications) (TD[A]) to deny your eligibility for access to classified information and/or assignment to duties that have been designated national security sensitive.
2. A decision on eligibility for access to classified information and/or assignment to duties that have been designated national security sensitive is a discretionary security decision based on judgments by appropriately trained adjudicative personnel. Pursuant to reference (a), eligibility shall be granted only where facts and circumstances indicate eligibility for access to classified information is clearly consistent with the national security interests of the United States, and any doubt shall be resolved in favor of the national security. Information concerning your personal history has led to the security concern(s) listed in Attachment 1, *Statement of Reasons (SOR)*, which prevents TD(A) from making the affirmative decision that your eligibility is clearly consistent with the interests of national security. If this preliminary decision becomes final, you will not be eligible for access to classified information and/or assignment to duties that have been designated national security sensitive as defined by the above-cited references.
3. If you currently have access to classified information, this access may be suspended by your organization's Security Management Office.
4. You must complete Attachment 2, *Statement of Reasons Receipt and Statement of Intent*, and forward it to the TD(A), via your organization's Security Management Office (SMO) within ten (10) calendar days of receipt of this memorandum. Contact your SMO for help in preparing and forwarding this form. If the completed Attachment 2 is not received at TD(A), it will be presumed that you do not intend to submit a reply.

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other sources. If the Subject desires copies of releasable information pertinent to this SOR, advise him/her to follow the instructions in Attachment 3 of his/her memorandum.

i. Advise the Subject that written comments from personal references may be included as part of the response to the SOR. Such written comments may include observations regarding the Subject's judgment, reliability and trustworthiness. Personal references may comment on the pending eligibility decision if knowledgeable of the security issues identified in the SOR. Whether or not comments from personal references are included, the Subject's response to the SOR must be received in your office by the suspense date.

j. Ensure the response to the SOR is promptly endorsed by the appropriate authority, with a copy to the Subject, and immediately forwarded to TD(A).

5. Deployment/TDY. It is in the best interest of national security that this notice to the Subject be delivered as soon as possible. It is understood, however, that deployment or other operational circumstances may make it difficult for the Subject to provide an adequate response. If the Subject is currently deployed or other operational circumstances prevent your organization from initiating the security review proceedings action, immediately notify TD(A) in writing. Be sure to provide your SMO contact information to TD(A) and keep us apprised of the Subject's status. Upon the Subject's return from deployment, or the end of the operational circumstance, your office should deliver the SOR immediately and forward the signed *Statement of Reasons Receipt and Statement of Intent* to TD(A) as soon as possible.

6. If you have any questions, please contact the TD(A) Call Center at commercial (667) 424-3850 or DSN 323-424-3850 or send a message via the DISS Portal.

Charis Lyon

by A0217

Charis Lyon
Division Chief
Trust Decision (Adjudications)

Attachment:
Subject's Memorandum (w/attachments)

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Personal Appearance

(1) The personal appearance is in addition to, and not in lieu of, the written response to the LOI/SOR. If you request a personal appearance, and security concerns remain after the adjudication of your LOI/SOR response, the TD(A) personal appearance scheduler will coordinate with you and your SMO to schedule a day, time, and virtual location for your personal appearance. The personal appearance will be held as soon as possible after receipt, review, and evaluation of your written response and will be conducted via Video Teleconference (VTC). You must have a device with access to the internet, audio and video (camera) capabilities, as well as a private space for you to conduct the virtual meeting. The scheduler will also inform you of any additional information or documentation needed from you prior to the personal appearance. You may also provide additional documentation you wish TD(A) to review before the personal appearance. Please provide all available information to TD(A) at least seven (7) calendar dates before the personal appearance. If you fail to respond to TD(A) attempts to schedule your personal appearance in a timely manner, TD(A) will proceed with adjudication based on the merits of the available information and no personal appearance will be conducted.

(2) The personal appearance is not mandatory but is an option to provide you with an opportunity to orally elaborate on your previously submitted written response to the LOI/SOR and present any new relevant documents not previously submitted in your written response. This appearance is also intended to provide you with an opportunity to present a full picture of your situation that otherwise might only be available solely from a written response to the LOI/SOR.

(3) A representative from TD(A) will facilitate your personal appearance. This representative will oversee the personal appearance and will ensure that a written summary of the proceedings is created, which will become part of the official administrative record. Your personal appearance will include a TD(A) representative and may include a DCSA Office of General Counsel representative and a member of the Behavioral Sciences Branch. You are permitted to bring an advisor or legal counsel with you. Personal witnesses are not permitted to attend the personal appearance. Personal witness statements may be included in your documentation.

(4) At the personal appearance, you will have an opportunity to present oral and documentary information on your own behalf. While the personal appearance involves the collection and consideration of additional information in a non-adversarial forum in which you can participate on your own behalf, you may retain an advisor or legal counsel, at your own expense, who can be present at the appearance. If you desire to retain an advisor or legal counsel for this process, steps should be taken immediately to arrange for this individual. Postponement of the personal appearance can be granted only for good cause. Your advisor or legal counsel may provide you with advice and guidance, however, they may not speak on your behalf. You are ultimately responsible for any oral presentation and for answering TD(A) representative's questions. The TD(A) representative may allow your advisor or legal counsel to make limited comments for the record in support of your statements and documents at the conclusion of the personal appearance. There will be no opportunity for you, or other persons present, to examine or cross-examine witnesses, or to engage in discovery of documents beyond existing rights under the Privacy Act or Freedom of Information Act.

(5) To prepare for the personal appearance, ensure that you are prepared to orally address all the remaining security concerns and adverse information documented in the LOI/SOR. Also, make sure that your supporting documents are organized and readily accessible for presentation to the TD(A) representative. Be prepared to address any information that explains, refutes, corrects, extenuates, mitigates, or updates the security concerns and information.

(6) The TD(A) representative will have access to your case file and your written response to the LOI/SOR. Therefore, your goal at the personal appearance should be to add a personal dimension to your written response to the LOI/SOR and to add any additional or new information and documentation, rather than merely repeating material you previously submitted. You will not have the opportunity to present or cross-examine witnesses. If you want the view of others to be presented at the personal appearance, you should obtain these views in writing (e.g., letters of reference, letters from medical authorities, etc.) prior to your personal appearance and be prepared to submit materials which capture those views to TD(A).

(7) During the personal appearance, you will be allowed to make an oral presentation and submit new documentation, in addition to the documentation you submitted before the personal appearance. The TD(A) representative's role is not to present the government's security concerns or argue the merits of the government's position, but rather to hear your oral presentation, which will inform TD(A) final adjudicatory decision. You will be given an opportunity to present your case as fully as possible to the TD(A) representative.

(8) At the end of the personal appearance, you will be given an opportunity to make a closing statement. This statement is your opportunity to summarize how the information and documentation you have presented supports overturning the preliminary unfavorable decision in your case. Should the preliminary decision be upheld after your personal appearance, you will receive the final denial/revocation of your eligibility to classified information (to include SCI) in writing, which will include an explanation of the adjudicative decision. You will also receive additional instructions as to how you may request the written summary of your personal appearance and appeal the final decision in writing to your component Personnel Security Appeals Board (PSAB) or you may elect to have a personal Appearance hearing before a Defense Office of Hearings and Appeals (DOHA) Administrative Judge (AJ). If you elect the personal appearance hearing before a DOHA AJ, the AJ's recommendation will subsequently be forwarded to the PSAB for consideration in its final determination of your appeal.

Your inability to satisfy your delinquent debt indicates poor self-control, lack of judgment, or unwillingness to abide by rules and regulations, which raises questions about your reliability, trustworthiness, and ability to protect classified or sensitive information. This is because an individual who is financially overextended is at greater risk of having to engage in illegal or otherwise questionable acts to generate funds. Therefore, your financial situation is a security concern. (Guideline F, Attachment 6)

List of Pertinent Documents

Defense Counterintelligence and Security Agency, Tier 3 Investigation, Case # 2420988206,
April 2, 2025

DCSA AVS Memorandum, Supplemental Information Request, June 17, 2025

DCSA AVS Memorandum, Supplemental Information Request, September 29, 2025

Experian Credit Bureau Report, obtained by the DCSA TD(A), January 28, 2026



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6. If you have any questions, please contact the TD(A) Call Center at commercial (667) 424-3850 or DSN 323-424-3850 or send a message via the DISS Portal.

Charis Lyon

by A0217

Charis Lyon
Division Chief
Trust Decision (Adjudications)

Attachment:
Subject's Memorandum (w/attachments)

Applicable National Security Adjudicative Guidelines

The relevant national security adjudicative guidelines as published in the *Security Executive Agent Directive 4, National Security Adjudicative Guidelines, December 10, 2016 (Effective June 8, 2017)* for each area of security concern are attached. Please be aware that each Guideline criteria may not be applicable to your case.

GUIDELINE F: FINANCIAL CONSIDERATIONS

The Concern. Failure to live within one's means, satisfy debts, and meet financial obligations may indicate poor self-control, lack of judgment, or unwillingness to abide by rules and regulations, all of which can raise questions about an individual's reliability, trustworthiness, and ability to protect classified or sensitive information. Financial distress can also be caused or exacerbated by, and thus can be a possible indicator of, other issues of personnel security concern such as excessive gambling, mental health conditions, substance misuse, or alcohol abuse or dependence. An individual who is financially overextended is at greater risk of having to engage in illegal or otherwise questionable acts to generate funds. Affluence that cannot be explained by known sources of income is also a security concern insofar as it may result from criminal activity, including espionage.

Conditions that could raise a security concern and may be disqualifying include:

- (a) inability to satisfy debts;
- (b) unwillingness to satisfy debts regardless of the ability to do so;
- (c) a history of not meeting financial obligations;
- (d) deceptive or illegal financial practices such as embezzlement, employee theft, check fraud, expense account fraud, mortgage fraud, filing deceptive loan statements and other intentional financial breaches of trust;
- (e) consistent spending beyond one's means or frivolous or irresponsible spending, which may be indicated by excessive indebtedness, significant negative cash flow, a history of late payments or of non-payment, or other negative financial indicators;
- (f) failure to file or fraudulently filing annual Federal, state, or local income tax returns or failure to pay annual Federal, state, or local income tax as required;
- (g) unexplained affluence, as shown by a lifestyle or standard of living, increase in net worth, or money transfers that are inconsistent with known legal sources of income;
- (h) borrowing money or engaging in significant financial transactions to fund gambling or pay gambling debts; and
- (i) concealing gambling losses, family conflict, or other problems caused by gambling.

Conditions that could mitigate security concerns include:

- (a) the behavior happened so long ago, was so infrequent, or occurred under such circumstances that it is unlikely to recur and does not cast doubt on the individual's current reliability, trustworthiness, or good judgment;
- (b) the conditions that resulted in the financial problem were largely beyond the person's control (e.g., loss of employment, a business downturn, unexpected medical emergency, a death, divorce or separation, clear victimization by predatory lending practices, or identity theft), and the individual acted responsibly under the circumstances;

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- (c) the individual has received or is receiving financial counseling for the problem from a legitimate and credible source, such as a non-profit credit counseling service, and there are clear indications that the problem is being resolved or is under control;
- (d) the individual initiated and is adhering to a good-faith effort to repay overdue creditors or otherwise resolve debts;
- (e) the individual has a reasonable basis to dispute the legitimacy of the past-due debt which is the cause of the problem and provides documented proof to substantiate the basis of the dispute or provides evidence of actions to resolve the issue;
- (f) the affluence resulted from a legal source of income; and
- (g) the individual has made arrangements with the appropriate tax authority to file or pay the amount owed and is in compliance with those arrangements.

(c) The ultimate determination of whether the granting or continuing of national security eligibility is clearly consistent with the interests of national security must be an overall common sense judgment based upon careful consideration of the following guidelines, each of which is to be evaluated in the context of the whole person.

- (1) GUIDELINE A: Allegiance to the United States
- (2) GUIDELINE B: Foreign Influence
- (3) GUIDELINE C: Foreign Preference
- (4) GUIDELINE D: Sexual Behavior
- (5) GUIDELINE E: Personal Conduct
- (6) GUIDELINE F: Financial Considerations
- (7) GUIDELINE G: Alcohol Consumption
- (8) GUIDELINE H: Drug Involvement and Substance Misuse
- (9) GUIDELINE I: Psychological Conditions
- (10) GUIDELINE J: Criminal Conduct
- (11) GUIDELINE K: Handling Protected Information
- (12) GUIDELINE L: Outside Activities
- (13) GUIDELINE M: Use of Information Technology

(d) In evaluating the relevance of an individual's conduct, the adjudicator should consider the following factors:

- (1) the nature, extent, and seriousness of the conduct;
- (2) the circumstances surrounding the conduct, to include knowledgeable participation;
- (3) the frequency and recency of the conduct;
- (4) the individual's age and maturity at the time of the conduct;
- (5) the extent to which participation is voluntary;
- (6) the presence or absence of rehabilitation and other permanent behavioral changes;
- (7) the motivation of the conduct;
- (8) the potential for pressure, coercion, exploitation, or duress; and
- (9) the likelihood of continuation or recurrence.

(e) Although adverse information concerning a single criterion may not be sufficient for an unfavorable eligibility determination, the individual may be found ineligible if available information reflects a recent or recurring pattern of questionable judgment, irresponsibility, or unstable behavior. However, a single criterion may be sufficient to make an unfavorable eligibility determination even in the absence of a recent occurrence or a recurring pattern. Notwithstanding the whole-person concept, pursuit of further investigation may be terminated by an appropriate adjudicative agency in the face of reliable, significant, disqualifying, adverse information.

(f) When information of security concern becomes known about an individual who is currently eligible for access to classified information or eligible to hold a sensitive position, the adjudicator should consider whether the individual:

- (1) voluntarily reported the information;
- (2) was truthful and complete in responding to questions;
- (3) sought assistance and followed professional guidance, where appropriate;

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(4) resolved or appears likely to favorably resolve the security concern;
(5) has demonstrated positive changes in behavior; and
(6) should have his or her national security eligibility suspended pending final adjudication of the information.

(g) If after evaluating information of security concern, the adjudicator decides the information is serious enough to warrant a recommendation of denial or revocation of the national security eligibility, but the specific risk to national security can be managed with appropriate mitigation measures, an adjudicator may recommend approval to grant initial or continued eligibility for access to classified information or to hold a sensitive position with an exception as defined in Appendix C [of Security Executive Agent Directive 4, National Security Adjudicative Guidelines, signed December 10, 2016, effective June 8, 2017].

(h) If after evaluating information of security concern, the adjudicator decides that the information is not serious enough to warrant a recommendation of denial or revocation of the national security eligibility, an adjudicator may recommend approval with a warning that future incidents of a similar nature or other incidents of adjudicative concern may result in revocation of national security eligibility.

(i) It must be noted that the adjudicative process is predicated upon individuals providing relevant information pertaining to their background and character for use in investigating and adjudicating their national security eligibility. Any incident of intentional material falsification or purposeful non-cooperation with security processing is of significant concern. Such conduct raises questions about an individual's judgment, reliability, and trustworthiness and may be predictive of their willingness or ability to protect national security.

Remember it is up to you to decide whether to respond or not. You are responsible for the substance of your response and you must sign that response.

b. Writing your response

(1) Your response should be submitted in writing, via your SMO and/or Sensitive Compartmented Information (SCI) SMO, to TD(A). It must be submitted before the expiration of the response deadline. You should address each item cited in the SOR separately. You should also admit or deny each item in the SOR and provide an explanation for each response.

(2) Attach all supporting documentation, to include any available documentation that explains, refutes, corrects, extenuates, mitigates or updates each item cited in the SOR. Organize supporting documents in the order that they are cited in your response and enclose copies with your response. You may use dividers or tabs to help you assemble the supporting documentation in order. Finally, be sure to sign and date your letter. Keep a copy of your entire response for your records.

(3) The impact of your written response will depend on the extent to which you can specifically refute, correct, extenuate, mitigate, or update security concerns cited in the SOR. If you believe that the unfavorable information in the SOR presents an incomplete picture of the situation or circumstances, you should provide information that explains your case. Bear in mind that the information you provide will be considered, but it also may be verified through additional investigation.

(4) The National Security Adjudicative Guideline(s) pertinent to security concerns in your case are listed in Attachment 5. The guideline(s) provide a framework for weighing all available information, both favorable and unfavorable that is of security concern. The Guideline(s) aid in making a common-sense decision based upon all that is known about a Subject's personal history.

(5) When you have completed your written response, sign and date it. Place your response and supporting documents in a single envelope or package and forward to TD(A), via your organization's SMO and/or SCI SMO. Be sure to meet the time deadline for submission. When a final decision is made, you will be notified in writing, via your organization's SMO and/or SCI SMO. If the decision is favorable, your access eligibility will be granted or restored. If security concerns remain after adjudication of your written response by TD(A), and you requested a personal appearance, you will be afforded an opportunity to appear personally before TD(A) prior to a final decision if you elected to do so in your Statement of Reasons Receipt and Statement of Intent. Additionally, if the decision set forth by TD(A) is not favorable, you may appeal the decision to your component Personnel Security Appeals Board (PSAB).

(6) If the final decision set forth by TD(A) is not favorable you will receive a Memorandum of Denial or Revocation. You may submit a written appeal directly to your component Personnel Security Appeals Board (PSAB) or you may elect to have a personal appearance hearing before a Defense Office of Hearings and Appeals (DOHA) Administrative Judge (AJ). If you elect the personal appearance hearing before a DOHA AJ, the AJ's recommendation will subsequently be forwarded to the PSAB for consideration in its final determination of your appeal.

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NATIONAL SECURITY ADJUDICATIVE GUIDELINES FOR DETERMINING ELIGIBILITY FOR ACCESS TO CLASSIFIED INFORMATION OR ELIGIBILITY TO HOLD A SENSITIVE POSITION

1. Introduction.

(a) The following National Security Adjudicative Guidelines (“guidelines”) are established as the single common criteria for all U.S. Government civilian and military personnel, consultants, contractors, licensees, certificate holders or grantees and their employees, and other individuals who require initial or continued eligibility for access to classified information or eligibility to hold a sensitive position, to include access to sensitive compartmented information, restricted data, and controlled or special access program information (hereafter referred to as “national security eligibility”). These guidelines shall be used by all Executive Branch Agencies when rendering any final national security eligibility determination.

(b) National security eligibility determinations take into account a person’s stability, trustworthiness, reliability, discretion, character, honesty, and judgment. Individuals must be unquestionably loyal to the United States. No amount of oversight or security procedures can replace the self-discipline and integrity of an individual entrusted to protect the nation’s secrets or occupying a sensitive position. When a person’s life history shows evidence of unreliability or untrustworthiness, questions arise as to whether the individual can be relied upon and trusted to exercise the responsibility necessary for working in an environment where protecting the national security is paramount.

(c) The U.S. Government does not discriminate on the basis of race, color, religion, sex, national origin, disability, or sexual orientation in making a national security eligibility determination. No negative inference concerning eligibility under these guidelines may be raised solely on the basis of mental health counseling. No adverse action concerning these guidelines may be taken solely on the basis of polygraph examination technical calls in the absence of adjudicatively significant information.

(d) In accordance with EO 12968, as amended, eligibility for covered individuals shall be granted only when facts and circumstances indicate that eligibility is clearly consistent with the national security interests of the United States, and any doubt shall be resolved in favor of national security.

2. The Adjudicative Process.

(a) The adjudicative process is an examination of a sufficient period and careful weighing of a number of variables of an individual’s life to make an affirmative determination that the individual is an acceptable security risk. This is known as the whole-person concept. All available, reliable information about the person, past and present, favorable and unfavorable, should be considered in reaching a national security eligibility determination.

(b) Each case must be judged on its own merits, and the final determination remains the responsibility of the authorized adjudicative agency. Any doubt concerning personnel being considered for national security eligibility will be resolved in favor of the national security.

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